

1.

CASE #	CASE NAME	HEARING NAME
CVPS2403221	TUCKER VS COACHELLA VALLY UNIFIED SCHOOL DISTRICT	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION ON 1ST AMENDED COMPLAINT OF THOMAS TUCKER

Tentative Ruling: Granted.

Defendant District to file proposed judgment within 10 days of this order becoming final.

Defendant District to provide notice pursuant to CCP 1019.5.

This is a FEHA action initiated on May 1, 2026 by Plaintiff Thomas Tucker against his former employer, Coachella Valley Unified School District (the “District”). Plaintiff is an African American male with over 24 years of experience in public education, holds a PhD from the University of Southern California, and has never received a negative evaluation or performance review. District hired Plaintiff in June 2023 as the Principal of Toro Canyon Middle School. Plaintiff alleges numerous staff members were disgruntled by Plaintiff’s policies and practices. In March 2024, a group of teachers presented a petition to the District falsely alleging that Plaintiff created a hostile work environment. Thereafter, District received a letter by another teacher, Michael Seegar, who expressed his and the silent majority’s endorsement of Plaintiff’s “exemplary leadership, unwavering dedication, and genuine compassion” to the school. Plaintiff alleges he was subjected to a hostile work environment, discrimination and retaliation such that he was forced to resign on March 14, 2024.

The operative 1st Amended Complaint asserts 7 causes of action:

1. Racial Discrimination
2. Racial Harassment
3. Retaliation (Gov Code § 12940)
4. Failure to Prevent Discrimination, Harassment, and Retaliation
5. Salary History Discrimination
6. Retaliation (Lab. Code § 1102.5)
7. Retaliation (Lab. Code § 98.6)

Defendant District now moves for summary judgment, or in the alternative, summary adjudication, as to all seven causes of action on the grounds that there is no triable issue of material fact. Alternatively, City seeks summary adjudication because Plaintiff’s causes of action lack merit.

In opposition, Plaintiff argues City’s motion improperly asks this Court to resolve factual disputes that cannot be resolved on summary judgment. Plaintiff asserts the evidence reveals the City’s discriminatory actions, and City’s proffered justification for Plaintiff’s

termination is pretextual. Plaintiff contends City continuously failed to accommodate Plaintiff. Lastly, City grossly overstates the physical demands of Plaintiff's job duties.

Procedural Issue(s)

Lodged Documents

Both parties filed a Notice of Lodged Documents. This is improper. Lodged Exhibits are temporarily placed or deposited with the Court but not filed, and until it is filed, it is not part of the Court's permanent file. (*Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 487, fn. 8; *Mao's Kitchen, Inc. v. Munday* (2012) 209 Cal.App.4th 132, 150; *Beltone Electronics Corp. v. Superior Court (The People)* (1978) 87 Cal.App.3d 452, 455.) Upon completion of the hearing, the lodged records may be returned by the clerk. (Cal. Rules of Court, rule 3.1302, subd. (b).) Pursuant to Local Rule 3315, exhibits or other evidence offered in support of a motion "shall be filed, unless lodging" is specifically authorized by statute, the California Rules of Court, or local rule. Any Notice of Lodgment shall include a citation to the statute or rule that authorizes that type of document to be lodged. Neither party cited authority providing for lodged exhibits. Thus, the exhibits should have been filed, not lodged. The Court will order the lodged exhibits filed as of the dates lodged to include them as part of the record.

District's Deposition Transcripts as an Exhibit

District attaches various deposition transcripts as exhibits to support its motion. However, District failed to highlight relevant portions of testimony contained in each transcript (Cal. Rules of Court, rule 3.1116(c) requires that when a deposition is attached to a motion, relevant portions of any testimony must be highlighted as to call attention to the testimony.)

Evidentiary Objection(s)

Plaintiff's objections: 1 & 3 are overruled. 2 is sustained as hearsay.

City's objections: 1-11, 14, 18, 19, 21, 22, 23, and 57 are overruled. 12, 13, 15, 16, 17, 20, 24 – 56, and 37 are sustained.

Summary Judgment/Adjudication

A party may move for summary judgment where "all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).) A defendant moving for summary judgment bears the initial burden of showing that "one or more elements of the cause of action cannot be separately established, or that there is a complete defense to that cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).) Once the defendant meets this burden, the burden shifts to the plaintiff to set forth "specific facts showing that a triable issue of material fact exists. (*Id.*) In opposing the motion, the plaintiff may not simply rely upon allegations or denials of pleadings. (*Id.*) A defendant may alternatively obtain summary judgment by establishing a complete defense to the plaintiff's claim. (Code Civ. Proc., § 437c, subd. (p)(2).)

FEHA

In FEHA cases, California has adopted the three-stage burden shifting test from *McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792. (*Sandell v. Taylor-Listing, Inc.* (2010) 188 Cal.App.4th 297, 307.) Thus, for summary judgment purposes, “[i]n an employment discrimination case, the employer, as the moving party, has the initial burden to present admissible evidence showing either that one or more elements of plaintiff’s prima facie case is lacking or that the adverse employment action was based upon legitimate, nondiscriminatory factors.” (*Hicks v. KNTV Television, Inc.* (2008) 160 Cal.App.4th 994, 1003.) “If the employer meets its initial burden in this manner, the plaintiff then has the burden to produce ‘substantial evidence that the employer’s stated nondiscriminatory reason for the adverse action was untrue or pretextual, or evidence the employer acted with a discriminatory animus, or a combination of the two, such that a reasonable trier of fact could conclude the employer engaged in intentional discrimination.’” (*Id.*) A plaintiff’s “suspicions of improper motives...primarily based on conjecture and speculation” are insufficient to raise a triable issue of fact to withstand summary judgment. (*Kerr v. Rose* (1990) 216 Cal.App.3d 1551, 1564; *Guthrey v. State of California* (1998) 63 Cal.App.4th 1108, 1118.) However, “many employment cases present issues of intent, and motive, and hostile working environment, issues not determinable on paper”; such cases are “rarely appropriate for disposition on summary judgment.” (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 286; see also Gov. Code, § 12923, subd. (e).)

1st Cause of Action - Racial Discrimination

California’s Fair Employment and Housing Act prohibits discrimination in the “terms, conditions, or privileges of employment” on the basis of protected characteristics including sex, race, marital status, and pregnancy. (Gov. Code, § 12940, subd. (a).) The statute also provides: “It is an unlawful employment practice...(a) For an employer, because of the race...of any person, to refuse to hire or employ the person...or to bar or to discharge the person from employment...or to discriminate against the person in compensation or in terms, conditions, or privileges of employment.” (*Ibid.*)

To establish a prima facie case for race discrimination, a plaintiff must show: (1) he is a member of a protected class; (2) he was performing his job competently; (3) he suffered an adverse employment action; and (4) there are circumstances that the adverse action was taken because of the plaintiff’s protected status. (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 355.)

District contends there is no evidence to establish a case for racial harassment or discrimination because (1) there are no facts supporting a discriminatory motive, (2) there was no adverse employment action taken against Plaintiff, and (3) Plaintiff cannot show that he was subjected to unwelcome harassment.

An adverse employment action must “materially affect the terms, conditions, or privileges of employment.” (*Yanowitz v. L’Oreal USA, Inc.* (2004) 36 Cal.4th 1028, 1052.)

District argues there was no adverse employment action taken against Plaintiff because he remained employed as Principal at the same salary and classification and resigned on March 16, 2024. (Defendant Ultimate Facts [“UF”] #18, 25.)

In contrast, Plaintiff argues triable issues exist because District intended to terminate and or reassign Plaintiff to a different school which would have resulted in a pay decrease. Plaintiff argues that District's intention of reassigning him from the middle school to a preschool is a demotion that would result in a pay decrease, which are forms of adverse employment actions.

It is undisputed Plaintiff is an African American male. (Plaintiff Undisputed Fact ["PUF"] #35.) The evidence shows District gave Plaintiff a "Notice of Possible Release Pursuant to Education Code section 44951" on March 11, 2024 (the "March Notice"). The notice states, "you *may* be released from your current certificated administrator position of Middle School Principal...you may be reassigned to a teaching position or another administrative position, which could include among other things, a change of title, work year, salary, and/or job responsibility...You will be notified prior to June 30, 2024, of the Board's final action..." (Defendant Notice of Lodging ["DNOL"] Exh. J, "March Notice", emphasis included.) Thereafter on March 16, 2024, Plaintiff gave written notice of his formal resignation, effective June 30, 2024. (DNOL, Exh. I.)

Plaintiff presents Frances Esparza's deposition testimony to dispute that he would have received the same salary and remained in the same classification. Esparza testified that when a principal is moved, they stay on the salary they are on, but the salary then adjusts to "where they are at." (DNOL, Exh. C, "Esparza Depo," pg. 123:17-22.) The principal decides if he wants to stay for the second year at the elementary school, and if he decides to stay, the pay decreases. (*Id.* at pg. 124:1-20; DNOL, Ellis Decl., Exh. 1.) Thus, the evidence demonstrates that the pay is decreased, which is a form of an adverse employment action. (*Guz, supra*, 24 Cal.4th at 355.) However, as District points out, before the reassignment occurred, Plaintiff resigned. (DNOL, Exh. J, I.) It appears Plaintiff argues his constructive discharge is the adverse employment action itself.

A wrongful constructive termination in violation of public policy occurs when an employee resigns because an employer either intentionally creates, or knowingly permits to exist, working conditions that are so intolerable or aggravated at the time of the employer's resignation that a reasonable employer would realize that a reasonable person in the employee's position would be compelled to resign. (*Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238, 1250-1251.) Whether conditions were so intolerable as to justify a reasonable employee's decision to resign is normally a question of fact. (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 827; *Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1022.) Summary Judgment or adjudication may nevertheless be appropriate "when, under the undisputed facts, the decision to resign was unreasonable as a matter of law." (*Scotch, supra*, 173 Cal.App.4th at 1022.) Importantly, deprivations of salary or other economic benefits may support a constructive discharge claim in particularly egregious cases. (See *Vasquez, supra*, 222 Cal.App.4th at 827, 831 [concluding state minimum wage law was fundamental policy for purposes of claims for wrongful termination and constructive discharge in violation of public policy].) Notably, the court in *Vasquez* held that a former employee's allegations potentially established that the failure to reimburse for travel expenses created intolerable working conditions which forced former employee to resign. (*Id.* at 827-828.)

In reply, District argues that Plaintiff's decision to resign was unreasonable, and his working conditions were not so intolerable to constitute a constructive termination.

Indeed, Plaintiff concedes that during his time at the school, he had not received a negative evaluation or performance review. (PUF #52.) Plaintiff highlights Dr. Ellis's testimony that Plaintiff was a good principal. (PUF #52.) Although Plaintiff presents evidence that another teacher, Mr. Niles, was recorded saying the "N" word (PUF #47), Plaintiff himself testified that Niles was depicted in a video saying the word to a student. (Plaintiff Depo., pg. 102:8-18.) Thus, the evidence does not demonstrate racial discriminatory behavior was directed at Plaintiff in Plaintiff's presence, but was an incident that was reported to Plaintiff. (PUF #47.) Although Plaintiff relies on *Bailey v. San Francisco Dist. Attorney's Office* (2024) 16 Cal.5th 611 to support his position regarding Mr. Niles's use of the N word, *Bailey* is factually distinguishable from the instant case. In *Bailey*, plaintiff's coworker directed the racial epithet at plaintiff. (*Id.* at 621.)

As to the March Notice, a single threat of an adverse employment action, never carried out, does not constitute an adverse employment action under the standard articulated in *Yanowitz*. (*Meek v. Autozone, Inc.* (2018) 24 Cal.App.5th 855, 879 ["we are aware of [no authority], holding that a single threat of an adverse employment action, never carried out, could itself constitute an adverse employment action"].)

Accordingly, Plaintiff fails to present any evidence of an intolerable work environment.

Similarly, Defendant District points out no District employee ever made a racial comment, slur or reference to Plaintiff. (UF# 4, 29, 30.) District contends no facts establish that any administrator, supervisor, or teacher engaged in racially derogatory conduct or expressed bias based on race, and Plaintiff never complained of such conduct during his employment or when he resigned. (UF 28, 31, 32, 33, 34.) Indeed, Plaintiff's own allegations in the FAC show the issues were about his leadership style, not race. (UF 10.) Thus, there are no inferences of race discrimination. Plaintiff's allegation that the assistant principal was hired at a higher salary step despite having less experience fails to establish a discriminatory motive because Plaintiff does not show that the assistant principal was similarly situated.

In contrast, Plaintiff argues he experienced hostility and being treated differently based on his race from the outset of his employment. (PUF 45-46.) Plaintiff testified that he was told after his first meeting with the teachers that a counselor remarked that Plaintiff was "not the right fit for [the] school and there was something about [Plaintiff] that [the counselor didn't] like". (PNOL, Exh. 1., "Plaintiff Depo.," pg. 68:1-8.) Plaintiff testified he felt racial overtones that became stronger over time, "singled out," and "discriminated against." (*Id.* pg. 69:21-22, pg. 72:21-24, pg. 80:4-8; PUF 55-56.)

However, a plaintiff's "subjective beliefs in an employment discrimination case do not create a genuine [triable] issue of fact." (*Fououdi v. Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1007.) The evidence "must relate to the motivation of the decision makers and prove, by nonspeculative evidence, 'an actual causal link between prohibited motivation and termination.'" (*Id.* at 1008.) Indeed, Plaintiff recitation of the counselor's remark does not include race as the reason for the counselor's sentiment.

As discussed above, Plaintiff fails to present evidence that the "N" word was said to him. Although Plaintiff was upset that a derogatory term ("N" word) was used by Mr. Niles, the evidence does not show that it was directed at Plaintiff. Plaintiff presents no other evidence.

As to Plaintiff's argument that his first instance of discrimination was being underpaid and that District violated AB 168 by requesting his prior salary, District presented evidence that Plaintiff's race was not considered or discussed during the hiring process. (Ellis Decl., ¶¶7-8 ["Dr. Tucker's race was never considered in any way during the hiring process. As part of the salary placement process, the District followed the 'Coachella Valley Unified School District Certificated Management Salary Schedule.'"].) Indeed, Plaintiff himself testified, "There was no direct reference to my race that I could recall during the earlier part of the hiring process. I just – I don't recall anybody directly mentioning race." (Plaintiff Depo., pg. 64:12-22.)

District points out Plaintiff does not show that the assistant principal who was hired at a higher salary step despite having less experience was similarly situated to Plaintiff. Plaintiff does not address this point in his discussion regarding discriminatory motive. The failure to respond to a point is "equivalent to a concession." (*Sehulster Tunnels/Pre-Con v. Taylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16.)

To prove pretext, the plaintiff cannot simply show "the employer's decision was wrong, mistaken or otherwise unwise," but rather that the stated reasons are "weak, implausible, inconsistent, contradictor" and "could rationally be found to be wholly unworthy of credence." (*McRae v. Dept. of Corrections and Rehabilitation* (2006) 142 Cal.App.4th 338-389.) The plaintiff "must produce specific, substantial evidence of pretext" that cannot be "created by speculation or conjecture." (*Horn v. Cushman & Wakefield Western, Inc.* (1999) 72 Cal.App.4th 789, 807, 816.)

Indeed, District presents evidence of the Teachers' Petition. (DNOL, Exh. G, "Teachers' Petition".) This Petition is dated March 6, 2024, and states Plaintiff was creating a hostile work environment, and was unapproachable, standoffish, and generally did not fit in. (*Id.*) Esparza testified that she received complaints from parents, staff, and cabinet about Plaintiff's communication with staff. (DUF #19.) Esparza further testified Plaintiff came to Toro Canyon Middle School "with a strong elementary background as an elementary principal". (DNOL, Exh. C., "Esparza Depo", pg. 59:1-12.) There is no evidence that Plaintiff's race was a factor for the petition and for District's March Notice that followed. This facially qualifies as a legitimate, nondiscriminatory reason sufficient to shift the burden back to Plaintiff. An employer articulating a legitimate, non-discriminatory reason need not have "good cause" for its decision, so long as the reason was honestly believed. (*McGrory v. Applied Signal Technology, Inc.* (2013) 212 Cal.App.4th 1510, 1524.)

If the employer produces evidence showing a legitimate reason for the adverse employment action, the burden shifts back to the employee to provide "substantive responsive evidence" that the employer's proffered reasons were untrue or pretextual. (*Loggins v. Kaiser Permanent International* (2007) 151 Cal.App.4th 1102, 1108-1109.)

Plaintiff argues the March Notice stating he "struggled" during the school year was a disguise for the racism that Plaintiff endured. Plaintiff testified that from when he started in August up to March 11, he never received communication that he did anything inappropriate. (Plaintiff Depo., pg. 148:16-23; pg. 153:12-13.) Plaintiff testified that the criticisms against him were an exaggeration of facts. (*Id.* at pg. 153:10-16.)

However, Plaintiff fails to produce substantial responsive evidence to rebut District's non-discriminatory reason for issuing the March Notice that followed the Teachers' Petition.

As discussed previously, Plaintiff's belief is not evidence and does not create triable issues of material fact. (*Fouroudi, supra*, 57 Cal.App.5th at 1007.) Accordingly, the Court must grant the motion for summary adjudication.

2nd Cause of Action - Racial Harassment

FEHA harassment is legally viable against a public entity. (Gov. Code, § 12940, subd. (j).) In order to maintain a harassment claim, Plaintiff must allege that he: (1) belongs to a protected group; (2) was subjected to harassment; (3) the harassment was based upon a protected characteristic; and (4) the harassment was sufficiently severe or pervasive so as to alter the conditions of employment and create an abusive working environment. (*Lyle v. Warner Bros. Television Productions* (2006) 38 Cal.4th 264, 284; *Thompson v. City of Monrovia* (2010) 186 Cal.App.4th 860, 876.) .)

District points out Plaintiff fails to point to racially charged comments, slurs, or epithets directed at him or anyone. (UF #4, 29, 30.) District argues the one incident where Mr. Niles was on video using a derogatory term was not intended for Plaintiff, and District took immediate action when Plaintiff complained about it. (UF #12.) Even then, Plaintiff never stated that he felt personally discriminated against because of the racial slur in the video. (UF #13.)

Plaintiff argues the evidence supports a hostile environment and that racial overtones became stronger and stronger that Plaintiff does not belong. (PUF #55, 56, 62; Plaintiff Depo., pg. 69:21-25.) Plaintiff testified that people avoided him, did not communicate, did not speak, and walked away from him in the mornings. (PUF #55, 56, 62.) Plaintiff argues the N-word incident with Mr. Niles supports harassment.

As previously discussed, Plaintiff has not presented evidence that the hostility he experienced was due to his race. While he testified that he "felt" the racial overtones, he fails to present evidence of any racially charged comments, slurs, or epithets directed at him. Based on Plaintiff's own testimony, Plaintiff was made aware of Mr. Niles's use of the "N" word to a student because the conduct was reported to Plaintiff. Thus, it cannot be said that Plaintiff was subjected to harassment and that the harassment was based upon his race. (*Lyle, supra*, 38 Cal.4th at 284; *Thompson, supra*, 186 Cal.App.4th at 876.) Although Plaintiff relies on *Bailey, supra*, 16 Cal.5th 611, to support his argument, again, *Bailey* is factually distinguishable from the instant case.

3rd Cause of Action: Retaliation – Government Code § 12940

FEHA makes it unlawful for an employer to retaliate against an employee who engages in a protected activity (Gov. Code, § 12940.) To establish a prima facie case of retaliation, a plaintiff must show: (1) he engaged in a protected activity; (2) the employer subjected plaintiff to an adverse employment action; and (3) a causal link exists between the protected activity and the employer's action. (*Yanowitz, supra*, 36 Cal.4th at 1042.) If the employee successfully establishes these elements, the burden shifts to the employer to provide evidence that there was a legitimate, non-retaliatory reason for the adverse employment action. (*Morgan v. Regents of University of California* (2000) 88 Cal.App.4th 52, 68.) If the employer produces evidence showing a legitimate reason for the adverse employment action, the burden shifts back to the employee to provide "substantive

responsive evidence” that the employer’s proffered reasons were untrue or pretextual. (*Loggins v. Kaiser Permanent International* (2007) 151 Cal.App.4th 1102, 1108-1109.)

Defendant District argues Plaintiff was not subjected to retaliation because he did not engage in protected activity. District points out Plaintiff never complained that he was being discriminated against, harassed, or treated unfairly because of his race. (DUF 29, 30, 32.) The only complaint made was following Plaintiff’s resignation, when he complained to Maria McCleod that he was paid less than his white co-workers.

Plaintiff argues he engaged in protected activity by complaining about his salary disparity, complaining about being asked to reveal his salary history, and reporting Mr. Niles’s use of the N word. Plaintiff further reported the “not the right fit” comment to secondary director Michael Williams (“Williams”).

First, as discussed, Plaintiff was not subjected to an adverse employment action. Second, the evidence does not show a causal link between Plaintiff’s protected activity and alleged adverse employment action.

When Plaintiff reported Mr. Niles, Mr. Niles was removed from his lead position. (DNOL, Plaintiff Depo., pg. 106:7-11, pg. 109:1-2.) When asked if anybody minimized Plaintiff’s concerns about Mr. Niles, Plaintiff testified nobody minimized his concerns. (*Id.* at pg. 109:9-12.) Indeed, after Plaintiff reported Mr. Niles, he was placed on leave but eventually returned. (PUF #50.) Plaintiff presents no evidence of a causal link between his report of Mr. Niles and the alleged adverse employment action. (*Yanowitz, supra*, 36 Cal.4th at 1042.) Likewise, Plaintiff fails to present evidence of a causal link between his complaints about Dr. Ellis’s violation of AB 168 with his alleged adverse employment action and his complaint about his salary discrepancy. There is no temporal proximity between these complaints and his alleged adverse employment action. (See *Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 712.)

4th Cause of Action - Failure to Prevent Discrimination, Harassment and Retaliation

Government Code section 12940, subdivision (k) creates a separate actionable tort for failure to take reasonable steps necessary to prevent discrimination and harassment. The general elements include a duty of care, breach, causation and damages. (See *Trujillo v. North County Transit District* (1998) 63 Cal.App.4th 280, 289.) As a rule, there can be no failure to prevent if there is no underlying claim. (*Id.* at 284.)

5th Cause of Action - Salary History Discrimination – Labor Code section 432.3

Defendant District argues Plaintiff fails to show how he was subjected to salary history discrimination. District explains that Labor Code section 432.3, subdivision (f) states that Section 432.3 “does not apply to salary history information disclosable to the public pursuant to federal or state law, including the California Public Records Act...or the federal Freedom of Information Act...” Pursuant to Government Code section 12463, subdivision (c), “The Controller shall annually publish reports of the financial transactions of each school district within this state, together with any other matter the Controller deems of public interest.” District contends because Plaintiff is a public school employee, his salary information is public record within the state of California.

Plaintiff does not address this cause of action at all in opposition. The failure to respond to a point is “equivalent to a concession.” (*Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16.)

6th Cause of Action: Retaliation – Labor Code § 1102.5

Labor Code section 1102.5, subdivisions (b) and (d) prohibit an employer, or anyone acting on behalf of the employer, from retaliating “against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate,...if the employee has reasonable cause to believe that the information discloses a violation of law.” An employee engages in activity protected by the statute when the employee discloses “reasonably based suspicions” of illegal activity. (*Ross v. County of Riverside* (2019) 36 Cal.App.5th 380, 592.)

To establish a prima facie case of retaliation under Labor code section 1102.5, a plaintiff must make a showing that: (1) he engaged in a protected activity; (2) his employer subjected him to an adverse employment action; and (3) a causal link between the two. (*Edgerly v. City of Oakland* (2012) 211 Cal.App.4th 1191, 1199.) “[P]rotected disclosure under section 1102.5(b) encompasses reports or complaints of a violation made to an employer or agency even if the recipient already knows of the violation.” (*People ex rel. Garcia-Brower v. Kolla’s, Inc.* (2023) 14 Cal.5th 719, 734.)

The California Supreme Court in *Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703 “clarif[ied] that section 1102.6, and not *McDonnell Douglas*, supplies the applicable framework for litigating and adjudicating section 1102.5 whistleblower claims” as follows: (1) first, the employee must “demonstrate [] by a preponderance of the evidence that the employee’s protected whistleblowing was a “contributing factor” to an adverse employment action; (2) then, once the employee has made that necessary threshold showing, the employer bears “the burden of proof to demonstrate by clear and convincing evidence” that the alleged adverse employment action would have occurred “for legitimate, independent reasons” even if the employee had not engaged in protected whistleblowing activities. (Lab. Code, § 1102.6; *Lawson, supra*, 12 Cal.5th at 703, 712, emphasis added.) If the employer shows by clear and convincing evidence it would have taken the same action regardless of protected activity (the “same decision” defense), the employee is barred from all relief even if retaliation was a contributing factor. (*Ververka v. Department of Veterans Affairs* (2024) 102 Cal.App.5th 162, 172-175.)

For the same reasons Plaintiff’s FEHA retaliation claim fails, this claim for retaliation under the labor code fails for evidence of an adverse employment action and a causal link between Plaintiff’s protected activity and the alleged adverse action.

7th Cause of Action: Retaliation – Labor Code § 98.6

Under Labor Code section 98.6, employers may not discharge, discriminate, retaliate or take any adverse action against an employee or job applicant for engaging in certain types of conduct protected by the Labor Code, or retaliate against an employee because a family member has engaged in or has been perceived to engage in such protected conduct.

For the same reasons Plaintiff's FEHA and Labor Code retaliation claims fail, this claim for retaliation under the labor code fails for evidence of an adverse employment action and a causal link between Plaintiff's protected activity and the alleged adverse action.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2501603	COMBS VS PALM SPRINGS UNIFIED SCHOOL DISTRICT	MOTION TO COMPEL RESPONSES TO EMPLOYMENT FORM INTERROGATORIES, SPECIAL INTERROGATORIES AND DEMAND FOR PRODUCTION OF DOCUMENTS BY PALM SPRINGS UNIFIED SCHOOL DISTRICT, MARK ARNOLD, SIMONE KOVATS

Tentative Ruling: No tentative ruling. Hearing will be conducted on Thursday August 20, 2026 8:30 a.m. Department PS2.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508584	MATTISON VS LOPEZ	DEFENDANT UBER TECHNOLOGIES, INC.'S DEMURRER TO PLAINTIFFS' FIRST AMENDED COMPLAINT; BY UBER TECHNOLOGIES, INC.

Tentative Ruling:

This action arises out of a motor vehicle accident. On November 6, 2025, Plaintiffs Alina Mattison ("Mattison"), William Montagne ("Montagne"), and Shannon Weston ("Weston") (together "Plaintiffs") filed a Complaint against Defendants Richard Kenneth Lopez ("Lopez"), City of La Quinta ("City"), and County of Riverside ("County") for (1) negligence/negligence per se; (2) violation of Gov. Code § 835; and (3) loss of consortium. On March 27, 2026, the parties stipulated, and the Court entered an order allowing Plaintiffs to file a First Amended Complaint ("FAC") in which they dismissed City and County as defendants, added Defendant Uber Technologies, Inc. ("Uber") as a defendant, and added new causes of action arising out of Uber's alleged involvement in the incident. On April 2, 2026, Plaintiffs filed the FAC asserting the following causes of action: (1) negligence/negligence per se; (2) negligence; (3) negligent hiring/retention/supervision; (4) negligent infliction of emotional distress ("NIED"); and (5) loss of consortium.

In the FAC, Plaintiffs allege that on December 12, 2024, Mattison was driving on Airport Boulevard in La Quinta with Weston in the front passenger seat, when she was struck by a vehicle driven by Lopez when he failed to stop at a stop sign. (FAC at ¶¶ 11-12, 35-36.) Lopez was driving for Uber at the time he struck Plaintiffs' vehicle. (FAC at ¶¶ 25, 29.) Uber solicits and retains non-professional drivers, who apply on-line by providing a driver's license, vehicle registration, and proof of insurance, and completing a background check. (FAC at 21-23.) Uber uses a smartphone application ("app") to operate its transportation and delivery services, and that app connects drivers with users who need